

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                                              |                                     |                           |                                                                                                                                                                                                            |
|----------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Perri Fagin                                                                                                                 | Team:<br>Squad #05                  | CCRB Case #:<br>201606975 | <input type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 07/20/2016 6:40 AM, Tuesday, 07/26/2016 12:00 AM, Wednesday, 07/27/2016 12:00 AM, Monday, 08/15/2016 12:00 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>1/20/2018   | Precinct:<br>67                                                                                                                                                                                            |
| Date/Time CV Reported<br>Mon, 08/15/2016 2:26 PM                                                                                             | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 08/15/2016 2:26 PM                                                                                                                                                      |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Jovaniel Cordova | 15786  | 946459 | WARRSEC |
| 2. DT3 Patrick Dooley   | 2129   | 944518 | WARRSEC |
| 3. POM Rohail Khalid    | 23046  | 950677 | WARRSEC |
| 4. POM Greg Desideri    | 26761  | 945663 | WARRSEC |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. DT3 Edwin Santiago | 189       | 924461 | WARRSEC  |

| Officer(s)               | Allegation                                                                                                                 | Investigator Recommendation |
|--------------------------|----------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Jovaniel Cordova | Abuse: On July 20, 2016, Police Officer Jovaniel Cordova entered and searched § 87(2)(b) in Brooklyn.                      | A . Exonerated              |
| B . POM Greg Desideri    | Abuse: On July 20, 2016, Police Officer Greg Desideri entered § 87(2)(b)                                                   | B . Exonerated              |
| C . POM Jovaniel Cordova | Abuse: On August 15, 2016, Police Officer Jovaniel Cordova threatened to damage § 87(2)(b)'s property.                     | C . Unsubstantiated         |
| D . POM Jovaniel Cordova | Abuse: On August 15, 2016, Police Officer Jovaniel Cordova entered and searched § 87(2)(b) in Brooklyn.                    | D . Substantiated           |
| E . DT3 Patrick Dooley   | Abuse: On August 15, 2016, Detective Patrick Dooley entered and searched § 87(2)(b) in Brooklyn.                           | E . Substantiated           |
| F . POM Rohail Khalid    | Abuse: On August 15, 2016, Police Officer Rohail Khalid entered § 87(2)(b) in Brooklyn.                                    | F . Substantiated           |
| G . DT3 Patrick Dooley   | Abuse: On August 15, 2016, Detective Patrick Dooley threatened to damage § 87(2)(b)'s property.                            | G . Unsubstantiated         |
| H . POM Jovaniel Cordova | Abuse: Over the telephone, on August 15, 2016, Police Officer Jovaniel Cordova threatened to damage § 87(2)(b)'s property. | H . Unsubstantiated         |

## Case Summary

§ 87(2)(g)

On August 15, 2016, § 87(2)(b) called the CCRB to file this complaint on behalf of herself and her § 87(2)(b) daughter, § 87(2)(b).

On July 20, 2016, at approximately 6:40 a.m., § 87(2)(b) alleged that PO Jovaniel Cordova and PO Greg Desideri, both of Brooklyn South Warrant Squad, entered her home, located at § 87(2)(b) in Brooklyn, pursuant to a bench warrant for her son, § 87(2)(b), and PO Cordova searched for § 87(2)(b) (**Allegations A and B**). Upon leaving, PO Cordova gave § 87(2)(b) his business card. There were no arrests made.

On August 15, 2016, at approximately 8:35 a.m., PO Cordova, Det. Edwin Santiago, Det. Patrick Dooley, and PO Rohail Khalid, all from Brooklyn South Warrant Squad, arrived at § 87(2)(b) in Brooklyn. § 87(2)(b) alleged that PO Cordova knocked on the door of the same location and said, “This is the police. Open the door or we will break the door down” (**Allegation C**). § 87(2)(b) alleged that she called her mother, went downstairs, and opened the door. § 87(2)(b) had a brief conversation with PO Cordova and Det. Dooley, and was presented with the warrant they had for § 87(2)(b). § 87(2)(b) was allegedly asked for her age and she told the officers that she was § 87(2)(b). § 87(2)(b) allegedly handed one of the officers the phone and heard § 87(2)(b) tell him that they should wait until she returned home before entering since § 87(2)(b) was a minor. One of the officers allegedly told § 87(2)(b) that they already explained everything to § 87(2)(b) and then disengaged the call. PO Cordova and Det. Dooley entered and searched the home, accompanied by § 87(2)(b) (**Allegations D and E**). § 87(2)(b) told the officers that there was a basement at the rear of the house, and PO Cordova and Det. Dooley went out the rear door with her. Upon hearing that the basement was at the rear of the house, PO Rohail Khalid entered through the front door, cut through the first floor, and exited the rear door (**Allegation F**). All four officers were present at the rear of the house. § 87(2)(b) had trouble opening the basement door, and Det. Dooley allegedly told her that if she could not open it, he would break it down (**Allegation G**). The basement door was eventually opened without force and officers entered. Once it was determined that § 87(2)(b) was not present, the officers left the location.

Later that day, § 87(2)(b) allegedly called PO Cordova and expressed how upset she was that he entered her home while only her § 87(2)(b) daughter was home. PO Cordova allegedly told § 87(2)(b) that the next time he visited her home, he would not knock and would break down the door (**Allegation H**).

No arrests or summonses resulted from either incident. There is no video footage available for these incidents.

## Mediation, Civil and Criminal Histories

- Initially, § 87(2)(b) accepted mediation on behalf of herself and § 87(2)(b). However, § 87(2)(b) ultimately rejected mediation.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of October 18, 2016, § 87(2)(b) did not file a Notice of Claim with the New York City Comptroller’s Office regarding this incident (Board Review 02).

### **Civilian and Officer CCRB Histories**

- This is § 87(2)(b) fifth CCRB complaint (Board Review 03). § 87(2)(g)
- PO Cordova has been a member-of-the-service for eight years and has six prior CCRB complaints filed against him involving 19 allegations, one of which was substantiated. In CCRB case 201301007, the Board substantiated an allegation that PO Cordova entered and searched a location. The Board recommended instructions but the NYPD took no disciplinary action. § 87(2)(b) allegations in CCRB case 201301992 are pleaded to PO Cordova, but the case remains open.
- Det. Dooley has been a member-of-the-service for nine years and has four prior CCRB complaints filed against him involving seven allegations, one of which was substantiated. In CCRB case 20121015, the Board substantiated an allegation that Det. Dooley entered and searched a location. The board recommended charges but the NYPD disposition remains unknown.
- Det. Santiago has been a member-of-the-service for 17 years and has four prior CCRB complaints filed against him involving five allegations, none of which were substantiated § 87(2)(g)
- PO Khalid has been a member-of-the-service for five years and has one prior CCRB complaint filed against him involving one allegation, which was not substantiated § 87(2)(g)
- PO Desideri has been a member-of-the-service for eight years and has six prior CCRB complaints filed against him involving 16 allegations, four of which were substantiated § 87(2)(g).

### **Potential Issues**

Initially, § 87(2)(b) believed the date of the first incident to be July 27, 2016, because she knew that the incident occurred on a Wednesday. After receiving NYPD documentation, the incident was thought to have happened on July 26, 2016, however, ultimately, the investigation determined that the first incident occurred on July 20, 2016.

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

While § 87(2)(b) (Board Review 04) alleged that on August 15, 2016, PO Cordova, Det. Dooley, Det. Santiago, and PO Khalid entered and searched her home, it is corroborated amongst the officers that PO Cordova and Det. Dooley were the officers who first made entry, and that PO Khalid later followed. PO Cordova, Det. Dooley, and PO Khalid also exited the home through the rear door, and entered the basement which is accessible through a door at the rear of the house. § 87(2)(g)

#### **Allegations Not Pleaded**

- § 87(2)(b) (Board Review 05) alleged that only two officers entered her home during the first incident, identified via the investigation as PO Cordova and PO Desideri. PO Cordova (Board Review 06) testified that he entered the home with one other officer, but

did not remember who it was, and PO Desideri (Board Review 07) testified that he also entered the home, but did not know how many other officers entered or who they were. Det. Santiago (Board Review 08) testified that he participated in the search of § 87(2)(b) home, and that § 87(2)(b) followed the officers and was burning incense while they searched. § 87(2)(g)

- § 87(2)(g)

**Allegation A – Abuse of Authority: On July 20, 2016, Police Officer Jovaniel Cordova entered and searched § 87(2)(b) in Brooklyn.**

**Allegation B – Abuse of Authority: On July 20, 2016, Police Officer Greg Desideri entered § 87(2)(b) in Brooklyn.**

It is undisputed that since mid-July 2016, PO Cordova, the lead investigator of this case, had been trying to locate and apprehend § 87(2)(b) pursuant to a bench warrant (Board Review 18). § 87(2)(b) mother, § 87(2)(b) lives at § 87(2)(b) in Brooklyn with his sister and his grandmother. Through PO Cordova's investigative actions, it was determined that § 87(2)(b) listed this address as his own on 13 arrest reports and PO Cordova confirmed this address with § 87(2)(b) commercial provider (Board Review 09). July 20, 2016 was the first time that PO Cordova (Board Review 10) visited the home.

It is undisputed that, on July 20, 2016, at approximately 6:40 a.m., PO Cordova and PO Desideri visited § 87(2)(b) pursuant this investigation. It is further undisputed that § 87(2)(b) opened the door for the officers and allowed them inside, and PO Cordova conducted a search of the house, looking for § 87(2)(b) while PO Desideri stood by the front door.

§ 87(2)(b) alleged that, while PO Cordova was still outside the home, he told her that they had a warrant for § 87(2)(b) but did not specify the type of warrant. § 87(2)(b) testified that she immediately took a step back and allowed the officers inside. § 87(2)(b) testified that PO Cordova said nothing about entering the home before she granted the officers entry (Board Review 11). § 87(2)(b) denied giving the officers consent to search the home (Board Review 12).

PO Cordova testified that, before entering the home, he told § 87(2)(b) that the officers “had to check the house,” to which she responded, “Okay,” and granted the officers entry. PO Cordova also testified that they did not need consent to enter because they had a warrant and it was § 87(2)(b) last known address. PO Desideri testified that, while outside the front door, he told § 87(2)(b) that they had a warrant and they needed to search the house, after which § 87(2)(b) allowed the officers inside. PO Desideri did not remember the exact words he or § 87(2)(b) used, or what actions § 87(2)(b) took to invite the officers inside. When asked if he needed consent to enter the home, PO Desideri stated that they did not because they had a warrant for the location, although he confirmed that the warrant was actually for a person. Det. Santiago testified that he heard PO Cordova tell § 87(2)(b) that he “needed to do a home visit,” before

§ 87(2)(b) allowed him inside, but Det. Santiago was unsure of the exact words Det. Cordova used. PO Cordova and Det. Santiago testified that there was no indication that § 87(2)(b) was presently at the home. PO Desideri did not remember if there was any indication that he was presently home.

An officer has the authority to enter a dwelling pursuant to the execution of a bench warrant if there is reasonable belief that the suspect resides at that address and reasonable belief that the suspect is present inside the home. Payton v. New York, 445 U.S. 573 (1980) (Board Review 13). Officers may presume that a person is at home at certain times of the day, a presumption which can be rebutted by contrary evidence regarding the suspect's known schedule United States v. Bervaldi, 226 F.3d 1256, 1267 (2000) (Board Review 21).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is determined that **Allegations A and B** be closed as **exonerated**.

**Allegation C – Abuse of Authority: On August 15, 2016, PO Cordova threatened to damage**

§ 87(2)(b) **s property.**

**Allegation G – Abuse of Authority: On August 15, 2016, Detective Patrick Dooley threatened to damage** § 87(2)(b) **s property.**

§ 87(2)(b) alleged that when the officers first arrived to her home on August 15, 2016, they knocked on the door and PO Cordova said, “This is the police. Open the door or we will break the door down.” § 87(2)(b) also alleged that, after the entry and search of the house, while at the rear of the house, all of the officers had difficulties opening the door to the basement. § 87(2)(b) alleged that Det. Patrick Dooley said that if the door could not be opened, he would kick it down. § 87(2)(b) testified that the officers were able to open the basement door without damaging it. § 87(2)(b) testified that, through the phone, she heard an officer say that he would break down the basement door.

PO Cordova testified that, while at the front door, approximately a minute and a half after the ringing the doorbell, § 87(2)(b) answered the door. Det. Dooley (Board Review 19) testified that PO Cordova knocked on the door and a few minutes later, § 87(2)(b) answered. PO Cordova testified that, before the door was opened, he identified himself as a police officer and stated his name. PO Cordova denied threatening to break the door down.

Det. Dooley testified that, while at the basement door, he heard § 87(2)(b) say “something about a key” while on the phone with her mother before retrieving a keychain of two keys from her home. Det. Dooley testified that § 87(2)(b) spent approximately two minutes trying to open the door before succeeding. Det. Dooley did not think he said anything to § 87(2)(b) about opening the door and denied threatening to break down the door.

PO Cordova testified that § 87(2)(b) was having trouble opening the basement door so she gave him the key and he opened it. PO Khalid (Board Review 20) testified that § 87(2)(b) was having trouble opening the basement door, but no officers said anything to her about it or helped her open it. Det. Santiago testified that § 87(2)(b) had no issues opening the basement door and denied hearing any conversation between any officer and § 87(2)(b) about it. PO Cordova, PO Khalid, and Det. Santiago all denied hearing any officer threaten to break down the basement door if it was not opened.

§ 87(2)(g)  
Given this, it is recommended that **Allegations C and G** be closed as **unsubstantiated**.

**Allegation D – Abuse of Authority: On August 15, 2016, Police Officer Jovaniel Cordova entered and searched § 87(2)(b) in Brooklyn.**

**Allegation E – Abuse of Authority: On August 15, 2016, Detective Patrick Dooley entered and searched § 87(2)(b) in Brooklyn.**

**Allegation F – Abuse of Authority: On August 15, 2016, Police Officer Rohail Khalid entered § 87(2)(b) in Brooklyn.**

It is undisputed that PO Cordova had been trying to locate § 87(2)(b) since mid-July, and took investigative actions to determine § 87(2)(b) location (see Allegation A). PO Cordova also visited an additional address on § 87(2)(b) in Brooklyn on July 22, 2016, but after speaking with residents and neighbors, determined that § 87(2)(b) did not reside there and that his NYSID was connected to the address due to a system error.

It is undisputed that on August 15, 2016, PO Cordova, Det. Dooley, Det. Santiago, and PO Khalid visited § 87(2)(b) home pursuant to the bench warrant for § 87(2)(b). It is also undisputed that § 87(2)(b) opened the front door and was shown the warrant for § 87(2)(b). PO Cordova and Det. Dooley entered the home. It is further undisputed that § 87(2)(b) did not protest their entry into the home and that no officer told § 87(2)(b) that she did not have to let them in. PO Cordova and Det. Dooley conducted a search of the home. § 87(2)(b) was § 87(2)(b) at the time of the incident. § 87(2)(b) testified that PO Cordova, Det. Dooley, Det. Santiago, and PO Khalid all entered the home and searched it. § 87(2)(b) alleged that PO Cordova and Det. Dooley asked for her age and she told them.

PO Cordova testified that he entered and searched the home, but was uncertain where his partners were. Det. Dooley testified that he and PO Cordova first entered the home and then conducted a search. PO Khalid testified that Det. Dooley and PO Cordova first entered the home. Det. Dooley and PO Khalid testified that PO Khalid entered later, after being informed that the basement was at the rear of the house. Det. Santiago, who was positioned outside the rear of the house throughout the incident, did not see how Det. Dooley and PO Cordova gained entry, but saw them exit the rear of the house with § 87(2)(b). Det. Santiago only saw PO Khalid intermittently throughout the incident. § 87(2)(g)

All of the officers testified that upon arrival to § 87(2)(b) there was no indication that § 87(2)(b) was home. PO Cordova testified that § 87(2)(b) looked about 14 years old and Det. Dooley testified that she looked like she was in her “late teens or early 20’s.” PO Khalid testified that § 87(2)(b) looked 16 or 17 years old while Det. Santiago

testified that she looked like she was in her 20's. All of the officers denied asking § 87(2)(b) her age or hearing any officer do so.

Det. Dooley testified that the officers did not need § 87(2)(b)'s consent because they had an arrest warrant. PO Cordova testified that § 87(2)(b) could grant him entry into the house because they had a warrant, she was "competent," and understood everything that PO Cordova told her.

PO Khalid testified that while he was standing outside the front of the house, and Det. Dooley, PO Cordova, and § 87(2)(b) were on the first floor, § 87(2)(b) revealed that the house had a basement. PO Khalid testified that either PO Cordova or Det. Dooley called to him that he should come to the rear. Det. Dooley testified that he was the officer who called to PO Khalid. Det. Dooley and PO Khalid testified that PO Khalid entered the house through the front door, walked through the first floor, and exited through the rear door with PO Cordova, Det. Dooley, and § 87(2)(b).

Det. Dooley and PO Khalid testified that they entered the basement with PO Cordova. PO Cordova did not acknowledge which officers, if any, entered the basement with him. Det. Santiago testified that only PO Cordova and Det. Dooley entered the basement.

An officer has the authority to enter a dwelling pursuant to the execution of a bench warrant if there is reasonable belief that the suspect resides at that address and reasonable belief that the suspect is present inside the home. Payton v. New York, 445 U.S. 573 (1980). The police have the burden of establishing the existence, and the voluntariness of consent. People v. Keesler, 842 N.Y.S.2d 166 (2007) (Board Review 16). The background of the consenter, including age, is a factor to consider when determining the existence and the voluntariness of consent. Consent is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle. People v. Gonzalez, 39 N.Y.2d 122 (1976) (Board Review 17). Factors to consider in determining the voluntariness of the individual's consent are whether the individual (1) was in custody or under arrest; (2) was confronted by a large number of police or law enforcement officials; (3) had been evasive or uncooperative; and (4) was advised of the right to refuse. People v. Poinvil NY Slip Op 25102 (2015) (Board Review 14).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED] Therefore, it is determined that **Allegations D, E, and F** be closed as **substantiated**.

**Allegation H – Abuse of Authority: Over the telephone, on August 15, 2016, Police Officer Jovaniel Cordova threatened to damage § 87(2)(b)'s property.**

It is undisputed that § 87(2)(b) called PO Cordova on the phone after the incident with § 87(2)(b). It is also undisputed that § 87(2)(b) was called PO Cordova because she was upset that the officers had entered her home when only § 87(2)(b) was home.

§ 87(2)(b) alleged that PO Cordova told her that the next time he visited her home, he would not knock, he would kick down the door.

PO Cordova denied ever saying this to § 87(2)(b). Det. Dooley testified that PO Cordova had told him that a phone call occurred between himself and § 87(2)(b) but did not know the date or the content of this call. Det. Dooley did not remember if he was present when this phone call occurred, but denied ever hearing any officer threaten to break § 87(2)(b) door down. Det. Santiago and PO Khalid were unaware of any phone conversation that PO Cordova had with § 87(2)(b) on this date.

§ 87(2)(g)

Given this, it is recommended that **Allegation H** be closed as **unsubstantiated**.

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Squad: 5

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date